

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                      |                                            |                                                       |                                               |                                 |
|---------------------------------------------------|------------------------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Nicholas Milyadis                | Team:<br>Team # 1                                    | CCRB Case #:<br>201304556                  | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                      |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 05/25/2013 12:38 PM | Location of Incident:<br>Fulton Street and Gates Ave | Precinct:<br>88                            | 18 Mo. SOL<br>11/25/2014                              | EO SOL<br>11/25/2014                          |                                 |
| Date/Time CV Reported<br>Sat, 05/25/2013 1:11 PM  | CV Reported At:<br>CCRB                              | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sat, 05/25/2013 1:11 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| [REDACTED]         | [REDACTED] | [REDACTED]   |

| Witness(es) | Home Address |
|-------------|--------------|
| [REDACTED]  | [REDACTED]   |
| [REDACTED]  | [REDACTED]   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Ryan Mcguinness | 01308  | 938991 | 088 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. POM Charles Moncayo | 25354     | 922816 | 088 PCT  |

| Officer(s)            | Allegation                                                                     | Investigator Recommendation |
|-----------------------|--------------------------------------------------------------------------------|-----------------------------|
| A.SGT Ryan Mcguinness | Discourtesy: SGT Ryan Mcguinness spoke discourteously to § 87(2)(b) [REDACTED] | [REDACTED]                  |
| B.SGT Ryan Mcguinness | Abuse: SGT Ryan Mcguinness threatened to arrest § 87(2)(b) [REDACTED]          | [REDACTED]                  |

### Case Summary

On May 28, 2013, § 87(2)(b) called and filed the following complaint. On May 31, 2013, § 87(2)(b) provided a phone statement and accepted mediation. On June 27, 2013, the case was forwarded to the mediation unit. On September 12, 2013, the case was returned from the mediation unit because the subject officer rejected mediating the complaint. Phone calls were made to § 87(2)(b) on September 12, 18, 24, 26, and 30, 2013. Letters were mailed to § 87(2)(b) on September 18, 24, and 30, 2013. On October 8, 2013, two of the letters were returned by the US Postal Service because the forwarding time had expired. One of the letters listed § 87(2)(b)'s current address. Letters were mailed to the address on October 8 and 15, 2013. On October 17, 2013, § 87(2)(b) left a voicemail requesting the undersigned investigator call her. On October 18, 2013, contact was established with § 87(2)(b) who stated that she wished to withdraw her complaint § 87(2)(b)

§ 87(2)(b) confirmed that she was withdrawing the complaint of her own free will and that no one from the CCRB or the NYPD coerced her into doing so. The withdrawal conversation was digitally recorded, attached to Investigative Action #56, and reviewed by SI Carlmais Johnson, who confirmed that it adhered to agency guidelines. A withdrawal letter was sent to § 87(2)(b) on October 21, 2013, and it will be added to the case file upon its return. § 87(2)(g)

Team: \_\_\_\_\_

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Supervisor: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |